

Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City

TWENTIETH CONGRESS
First Regular Session

HOUSE BILL NO. 5558



Introduced by: Hon. Keith Micah "Atty. Mike" D.L. Tan

AN ACT
RECOGNIZING INDIVIDUAL RIGHTS OVER ONE'S LIKENESS AND
IDENTITY, REGULATING THE CREATION AND USE OF DEEPPAKES
THROUGH DISCLOSURE, CONSENT, AND PLATFORM ACCOUNTABILITY,
PROVIDING REMEDIES AND PENALTIES THEREFOR,
AND FOR OTHER PURPOSES

EXPLANATORY NOTE

In response to the rapid development and increasing misuse of artificial intelligence (AI) technologies, particularly those that allow for the realistic digital imitation of individuals and performers, protection, through this bill, is intended to safeguard personal identity, artistic integrity, and public trust in a digital environment where AI-generated content can be virtually indistinguishable from reality.

During the Senate probe into the use of AI technology to proliferate deepfake pornography, a Filipino actress recounted learning from a friend that a deepfake video had been created using her face. She initially felt ill, nauseated, confused, and stunned, which later turned into disgust and anger at what she described as a personal violation that was both revolting and humiliating. Citing information from the Office of Senator Hontiveros, the actress also emphasized that other public personalities may have been victimized by similar assaults, though many remain unaware of it.¹

This bill seeks to address serious democratic, moral, ethical, and economic challenges posed by AI. Increasingly sophisticated digital tools can generate highly realistic visual and audio representations of individuals. These tools, which are now available to the public through applications and websites, enable the creation of deepfakes and other manipulated media that can falsely depict people saying or

¹ Estrada, M. C. (2025, September 4). *Angel Aquino shares ordeal as a deepfake victim*. Daily Tribune. <https://tribune.net.ph/2025/09/04/angel-aquino-shares-ordeal-as-a-deepfake-victim>, Accessed on 13 October 2025

doing things they never did. This not only creates a risk of reputational damage but also threatens democratic processes and public discourse.

The potential for such technologies to be used in spreading misinformation, besmirching reputations, damaging trust in public institutions, and impersonating politicians or public figures to distort all sorts of messaging is beyond alarming.

The proposed measure seeks to build a digital future where rights are protected, regulate the creation and use of deepfakes, and protect Filipinos from non-consensual and malicious use of this technology, and ensure transparency, accountability, and redress in cases of abuse.

In view thereof, approval of this bill is earnestly requested.



Keith Micah "Atty. Mike" D.L. Tan
4th District, Quezon

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Be it enacted by the Senate and the House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Short Title.* – This Act shall be known as the “Deepfake Regulation Act.”

SEC. 2. *Declaration of Policy.* – It is hereby declared the policy of the State to promote and protect the rights of individuals over their identity, likeness, voice, and creative expression in the digital environment. In recognition of the rapid advancement of artificial intelligence and related technologies, the State shall ensure that the misuse of such technologies, including the creation and distribution of deepfakes and other manipulated media, shall not infringe upon personal dignity, privacy, reputation, or artistic integrity. The State also affirms its commitment to safeguard the public from the dangers of misinformation, deception, and other malicious uses of digitally generated content that undermine trust in institutions, distort democratic processes, and cause harm to individuals or society.

SEC. 3. *Definition of Terms.* - As used in this Act:

- a) *Artificial Intelligence (AI)* refers to computerized methods and tools, including but not limited to machine learning and natural language processing, that act in a way that resembles human cognitive abilities when it comes to solving problems or performing tasks;
- b) *Generative AI System* - refers to any system, tool, or platform that uses artificial intelligence to generate, synthesize, or manipulate video, audio,

print, or text content in a manner that may simulate human-like creation or substantially alter existing media.

SEC. 4. *Rights Over One's Likeness and Identity.* – Every person shall have exclusive rights over the use of their own image, voice, likeness, and identifiable personal attributes. These rights include protection against the use of such attributes by artificial intelligence, machine learning models, or other technologies to create, publish, or distribute synthetic or altered content, including deepfakes, without the person's express consent.

SEC. 5. *Copyright Protection.* – The following digitally generated works shall also be protected by copyright under R.A. 8293 also known as the "Intellectual Property Code of the Philippines":

- a) Deepfakes or digital reproduction of a person's physical and personal characteristics and distinctive traits such as voice, facial structure, mannerisms, or other identifying features, digital imitations, and other manipulated media that can falsely depict people saying or doing things they never did;
- b) AI-generated content which can be virtually indistinguishable from reality, and highly realistic visual and audio representations of individuals; and
- c) Digital reproductions that realistically simulate any performance.

SEC. 6. *Requirement of Explicit Consent.* – The publication or public distribution of these imitations is only permissible with the clear and explicit consent of the person being imitated. This consent may be granted via contract or licensing agreement and can be transferred legally. Any such unauthorized production, reproduction, modification, or public distribution of distributed synthetic or altered content shall constitute a violation of the individual's personality, privacy, and moral rights, and shall give rise to civil liability under this Act, Section 156 of R.A. 8293 also known as the "Intellectual Property Code of the Philippines", and other applicable laws.

SEC. 7 *Civil Remedies and Enforcement.* – Any person whose likeness, image, voice, or identity has been used or altered in violation of this Act shall have the right to:

- a) Request the immediate removal or takedown of such content from any platform, publisher, or media outlet;
- b) Seek compensation for actual, moral, or exemplary damages resulting from reputational harm, emotional distress, loss of income, or

- unauthorized commercial or political exploitation; and
- c) Initiate civil proceedings under relevant laws on privacy, defamation, intellectual property, or consumer protection.

Provided, That this shall be without prejudice to remedies available under Republic Act No. 386 or the "Civil Code of the Philippines", Republic Act No. 10173 or the "Data Privacy Act of 2012", Republic Act No. 10175 or the "Cybercrime Prevention Act of 2012", and other applicable laws.

SEC. 8. Deepfake Disclosure Requirement – Any person who, using AI or a generative AI system, produces or distributes a deepfake with the intent to distribute it over the internet, or knowledge that such deepfake shall so be distributed, shall be required to state the following disclosures:

a) Audiovisual content. - Any deepfake that contains both an audio and a visual element shall include:

1) not less than one clearly articulated verbal statement that identifies the content as containing audio and visual elements that are AI-generated or altered, and a concise description of the extent of such alteration;

2) an unobscured written statement in clearly readable text appearing at the top of the image throughout the duration of the visual element that identifies the content as containing audio and visual elements that are AI-generated or altered, and a concise description of the extent of such alteration; and

3) a visible link, icon, or similar tool to signal that the content has been altered by, or is a product of, generative artificial intelligence or similar technology.

b) Visual content. -Any deepfake that only contains a visual element shall include an unobscured written statement in clearly readable text appearing at the top of the image throughout the duration of the visual element that identifies the content as containing visual elements that have been AI-generated or altered, and a concise description of the extent of such alteration and a clearly visible link, icon, or similar tool to signal that the content has been altered by, or is a product of, generative artificial intelligence or similar technology.

c) Audio content. - Any deepfake that only contains an audio element shall include, at the beginning of such record, a clearly articulated verbal statement that identifies the content as containing altered audio elements that have been AI generated or altered and a concise description of the extent of such alteration, and in the even such records exceeds two minutes in length, not less than one additional clearly articulated verbal statement

and an additional concise description at some interval during each two-minute period thereafter.

SEC. 9. *Prohibited Use of Deepfakes Without Consent* – It shall be unlawful for any person to knowingly create, produce, or distribute a deepfake that depicts a real individual without their prior written or digital consent, where such deepfake:

- a) Is likely to cause harm, defame, deceive, harass, or exploit the person depicted; or
- b) Is used in a misleading, unauthorized commercial, sexual, or political context. Consent shall not be considered valid if obtained through fraud, coercion, or deception.

SEC. 10. *Responsibility of Digital Platforms and Takedown Requirements*. – All digital platforms operating in the Philippines, including social media services, video-sharing sites, audio-sharing sites, and content-hosting providers, shall:

- a) Establish accessible mechanisms for users to report deepfake content in violation of this Act;
- b) Remove or disable access to reported content within twenty-four (24) hours of receiving a complaint from the verified account of the person depicted or impersonated in the deepfake content, unless otherwise justified under applicable laws;
- c) Maintain anonymized public logs of takedown actions and reporting data.

SEC. 11. *Penalty*. – The Department of Information and Communications Technology (DICT) shall impose the following penalties for any violation of this Act:

- a) **Non-Compliance with Disclosure Requirements.** - Any person who fails to comply with the disclosure requirements under Section 6 of this Act shall be liable to a fine of One Hundred Thousand Pesos (P100,000) for the first offense and Two Hundred Thousand Pesos (P200,000) for every subsequent offense.
- b) **Tampering with Required Disclosures.** - Any person who knowingly removes, alters, or tampers with the disclosures required under Section 6 of this Act shall be liable to a fine of One Hundred Thousand Pesos (P100,000) for the first offense and Two Hundred Thousand Pesos (P200,000) for every subsequent offense.
- c) **Unauthorized Use of Likeness.** - Any person found to have knowingly created, published, or distributed a deepfake depicting a real person without their valid consent, in violation of Section 7 of this Act, shall be subject to a fine of Two Hundred Fifty Thousand Pesos (P250,000) for the

first offense, and up to Five Hundred Thousand Pesos (P500,000) for aggravated or repeated offenses, without prejudice to the right of the aggrieved party to pursue civil damages under Section 5 of this Act or criminal liability under applicable laws.

d) Failure of Digital Platforms to Takedown Violative Content. - Digital platforms that fail to remove or disable access to content found to be in violation of this Act within twenty-four (24) hours after receiving a verified complaint shall be liable to the following administrative fines:

1) First offense - One Hundred Thousand Pesos (P100,000) for the first instance of non-compliance.

2) Subsequent offenses -Two Hundred Thousand Pesos (P200,000) per instance of non-compliance.

Provided, That the imposition of fines under this Section shall be without prejudice to the filing of civil or criminal actions under other applicable laws.

SEC. 12. *Specific Exemptions.* - A specific exemption for cases involving parody, satire, caricature, or social critique shall be considered. *Provided*, That this exemption is voided if the imitation constitutes misinformation that may cause concrete harm to others' rights or significant interests, such as health, privacy, reputation, or property. In such cases, even a satirical imitation may be deemed illegal.

SEC. 13. *Implementing Rules and Regulations.* - Within sixty (60) calendar days from the effectivity of this Act, the Department of Information and Communications Technology (DICT), in consultation with the Department of Science and Technology (DOST), Department of Trade and Industry (DTI), and the Intellectual Property Office (IPO), shall issue rules and regulations for the effective implementation of this Act.

SEC. 14. *Separability Clause.* - If any portion or provision of this Act is declared unconstitutional, the remainder of this Act or any provision not affected thereby shall remain in force and effect.

SEC. 15. *Repealing Clause.* - All other laws, acts, presidential decrees, executive orders, issuances, presidential proclamations, rules and regulations or parts thereof, which are contrary to and inconsistent with any provision of this Act, are hereby repealed, amended or modified accordingly.

SEC. 16. *Effectivity.* - This Act shall take effect fifteen (15) days after its publication in the Official Gazette or in a newspaper of general circulation.

Approved,